



U.S. Department
of Transportation

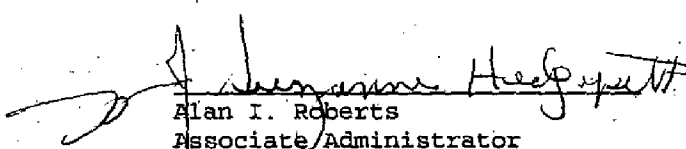
Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington, D.C. 20590

DOT-E 5820 (EXTENSION)
FIFTH REVISION December 22, 1992

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 5820 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 24 1994

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

ICI Americas, Inc.
Wilmington, DE

May 31, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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JUN 18 1996

DOT-E 5820
(SIXTH REVISION)

1. ICI Americas, Inc., Wilmington, Delaware, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of certain Division 2.2 gases for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of nonflammable gases in non-DOT specification IMO Type 5 portable tanks and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on ICI Americas' application dated April 22, 1996 submitted in accordance with 49 CFR 107.105.
3. HAZARDOUS MATERIALS (Descriptor and class). Monochlorodifluoromethane, Monochloropentafluoroethane, and Tetrafluoroethane, Dichlorodifluoromethane; classed as nonflammable gases (Division 2.2); other nonflammable gases specifically identified to, and acknowledged in writing by, the Office of Hazardous Materials Exemptions and Approvals (OHMEA) prior to the first shipment. NOTE: Effective October 1, 1993, the appropriate numeric hazard class or division and a new proper shipping description must be used in place of the written hazard class and old proper shipping description.
4. PROPER SHIPPING NAME (49 CFR 172.101). The chemical name or generic description, as appropriate.
5. REGULATION AFFECTED. 49 CFR 173.315(a).
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.
7. SAFETY CONTROL MEASURES. Packagings prescribed are non-DOT specification intermodal portable tanks mounted in an ISO frame designed and constructed in accordance with ICI Drawing numbers TSD 1070A, dated September 6, 1968; TSD 1048B, dated May 31, 1968; Specification A5968 as amended January 20, 1969; and

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O.P.E. Limited Drawing number TD/P/93/1032, dated May 13, 1968; or in accordance with ICI Drawing numbers TSD 1071A, dated May 31, 1968; RS 331962, dated August 5, 1971; RS 331963 dated May 31, 1968; and Specification A9326 dated September 20, 1971, and calculations on file with the OHMEA, and in compliance with the following:

(1) Code--Complies with ASME Section VIII Div. 1, but not certified; and IMCO Type 5.

(2) Insulation - None.

(3) Number of Compartments - One.

(4) Tank Size (inches) - $\frac{(\text{outside dia.}) \times (\text{length}) \times (\text{thickness})}{79-1/8 \times 181-1/2 \times 0.5625}$
Head Thickness (inches) - 21/32 nominal

(5) Water Capacity (U.S. Gallons) - 3424

(6) Material - Steel SA 299

(7) Design Pressure (PSIG) - 250
Static head (PSI) - 3.4

Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code.

(8) Test Pressure, Minimum (PSIG) - 1-1/2 (Design & Static head)

(9) Openings--18 inch manhole, top; 5 inch bottom opening, and other openings on top of tank.

(10) Tank surface area (square feet) - 354

(11) Safety Relief Devices - The venting capacity for each product must be at least equal to that determined by the flow formulas contained in the Compressed Gas Association (CGA) pamphlet S-1.2.

Spring loaded valves must be set to open at not less than design pressure and not more than 110 percent of design pressure.

(12) G-Loadings: Vertical down 2; Longitudinal 1; and Transverse 1.

(13) Maximum Gross Weight - 57,320 pounds.

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8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

b. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 5820."

c. The tank must be filled in accordance with the provisions of 49 CFR 173.315.

d. Each tank must be (i) visually inspected prior to each trip to insure that it has not been damaged on the previous trip; and (ii) be retested and reinspected in accordance with the provisions of 49 CFR 173.32b except the use of an approval agency is not required.

e. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.

f. Hydrostatic test certificates for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any representative of the DOT upon request.

9. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

10. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. April 30, 1998.

Issued at Washington, D.C.

for Marilyn J. Morris

Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN 1 3 1996

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: USCG, FHWA, FRA.